

21STCV42196 21STCV42196

County: los-angeles

Division: Civil Law and Motion

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Yu Fang Chen v. Zhi He, et al.

LASC Case No. 21STCV42196

Court's Ruling on Plaintiff's Objections to Tentative Statement of Decision

This Court has reviewed and considered the Plaintiff's Objection to Statement of Decision, filed on 6/22/26. 1 This Court now issues the following rulings and orders:

The Plaintiff's objection is **OVERRULED**, as being without merit, nor a proper objection to the proposed tentative ruling. The Plaintiff's objection does not challenge any portion of the court's tentative statement of decision.

The Court also notes there is no requirement to issue a written findings of fact and conclusions of law. CCP § 632 expressly states, in relevant part, that "[i]n superior courts, upon a trial of a question of fact by the court, written findings of fact and conclusions of law shall not be required. (Emphasis added.) Moreover, it is well settled that:

"A trial court rendering a statement of decision under Code of Civil Procedure section 632 is required only to state ultimate rather than evidentiary facts. A trial court is not required to make findings with regard to detailed evidentiary facts or to make minute findings as to individual items of evidence. Only where a trial court fails to make findings as to a material issue which would fairly disclose the determination by the trial court would reversible error result. Even though a court fails to make a finding on a particular matter, if the judgment is otherwise supported, the omission is harmless error unless the evidence is sufficient to sustain a finding in favor of the complaining party which would have the effect of countervailing or destroying other findings. A failure to find on an immaterial issue is not error. [Citation.] In issuing a statement of decision, the trial court need not address each question listed in a party's request. All that is required is an explanation of the factual and legal basis for the court's decision regarding such principal controverted issues at trial as are listed in the request."

(Ribakoff v. City of Long Beach (2018) 27 Cal.App.5th 50, 162-163.)

The Plaintiff also requests findings on material controverted issues. The request is **DENIED**. The Plaintiff had the burden in proving her case and failed to do so.

This Court's Tentative Statement of Decision adequately satisfies its obligation under CCP § 632. As such, no other modifications are required nor needed. This Court is not required, per se, to "modify" or otherwise change its SOD, unless

there is a formal need to do so. See, CRC, rule 3.1590 (b) ["If the court subsequently modifies or changes its announced decision . . ."] (Emphasis added.)

Moreover, generally speaking, the trier of fact does not need to explain or justify, in any considerable detail, each and every piece of evidence it relied upon in reaching its verdict.

Pursuant to the provisions of CRC, rule 3.1590, this Court issues the following additional orders, as follows:

In view of the foregoing, and pursuant to CRC, rule 3.1590 (f), this Court will adopt its prior tentative statement of decision, as the final statement of decision, without modification.

Defendant is directed to file a proposed judgment conforming with the Court's decision forthwith.

The parties may reserve any and all rights they may have per CRC, rule 3.1590 (j).

The Clerk is hereby to give notice of this ruling forthwith to all counsel of record.

IT IS SO ORDERED.

Dated: July 31, 2026

Brock T. Hammond

Judge of the Superior Court